

## 23STCV12267 23STCV12267

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-29

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Case Number: 23STCV12267 Hearing Date: June 29, 2026 Dept: 617

Dept.

617

Date:

6-29-26

Case

#: 23STCV12267

Trial

Date: 9-14-26

EVIDENTIARY SANCTIONS

MOVING

PARTY: Plaintiff, Esdras Cristobal Hernandez

RESPONDING

PARTY: Defendant, American Honda Motor Co., Inc.

RELIEF

REQUESTED

Motion

for Terminating Sanctions, or Alternatively, Issue or Evidentiary Sanctions

SUMMARY

OF ACTION

This

is a lemon law action. Plaintiff Esdras Cristobal Hernandez sued Defendant American Honda Motor Co., Inc. alleging Defendant failed to promptly replace his car or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff also asserts claims for breach of implied warranty and violation of section 1793.2, subdivision (b), of the Song-Beverly Act.

RULING: Denied.

Evidentiary

Objections: Sustained (personal knowledge).

Plaintiff

moves for terminating sanctions, or alternatively, issue or evidentiary sanctions against Defendant after Defendant's retained expert cleared all diagnostic fault codes in Plaintiff's car, disconnected the battery, and reset monitors and control units during a November 3, 2025 vehicle inspection. Plaintiff claims this was spoliation of evidence. Defendant opposes the motion, contending that the inspection was conducted in a routine manner and Plaintiff fails to show actual destruction of evidence, Defendant's willful misconduct, and prejudice. Plaintiff's motion is denied.

A

trial court has inherent power to "control the litigation before it." (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1431.) When faced with litigation abuse, a court has discretion to preclude evidence to ensure a fair trial (Peat, Marwick, Mitchell & Co. v. Superior Court (1988) 200 Cal.App.3d 272, 288) and to dismiss an action if no other remedy could ensure a fair trial. (Stephen Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736, 764.) Such remedies are available when a party intentionally destroys evidence. (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.)

"Spoliation

of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in pending or future litigation." (Williams, supra, 167 Cal.App.4th at p. 1223.) "[A] party moving for discovery sanctions based on the spoliation of evidence must make an

initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (Id. at p. 1227.)

As

an initial matter, Plaintiff's motion rests on inadmissible evidence from his counsel. Plaintiff's counsel was not present during the vehicle inspection and thus he does not have personal knowledge to testify regarding it. [Geraghty Decl. ¶ 3.] Nonetheless, even if Plaintiff were to present competent evidence regarding the inspection, it would still be insufficient because he cannot establish that clearing of codes and reset of vehicle systems prejudices his ability to prove his claims. The asserted prejudice is Plaintiff's inability to show that the car was defective at the time of inspection; however, the crux of a new motor vehicle express warranty claim is a manufacturer's failure to promptly replace the car or make restitution after it is unable to conform the car to the express warranty. (Civ. Code, § 1793.2, subd. (d)(2).) The subsequent presence of defects during an inspection in the throes of litigation has no bearing on this issue. Plaintiff's possession of repair orders for the vehicle enables him to prove the essential elements of his claim. [See Gopstein Decl. ¶ 5, Ex. 1.] Plaintiff's motion is therefore denied.

The

Court's denial of the sanctions request does not preclude an inference instruction under Evidence Code section 413 at the time of trial. (New Albertsons, Inc., supra, 168 Cal.App.4th at p. 1434.)

Plaintiff

to give notice.